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|          |                                                                                         | <p>(SAC, ¶¶ 96 and 97.) As defendants point out, these are actions and not misrepresentations.</p> <p><u>Third cause of action for vicarious liability.</u> The third cause of action is for vicarious liability against defendant College Networks Institute only. It appears to state a cause of action against this defendant based on negligence of the co-defendant.</p> <p>Plaintiff alleges that defendant Career Networks Institute “had a duty, whether arising under statute or by common law, to exercise due care with respect to the professional, ethical, and legal conduct of its business, such that no undue harm would befall its customers, i.e., its students.” (SAC, ¶ 114.) She alleges that defendant breached this duty because co-defendant Gonzales “harmed [p]laintiff as a result of her unlawful disclosure of [p]laintiff’s examine grade and erred test as previously complained of herein.”</p> <p>Again, California courts have not recognized a duty of care on the part of an educational institution that supports a claim for educational malfeasance, and plaintiff has not opposed the demurrer or shown that such a duty was owed.</p> <p>Thus, the unopposed general demurrer of defendants Career Networks Institute, Inc., dba CNI College, and Anne Gonzales to the second amended complaint of plaintiff Gabriela Rodriguez is sustained in its entirety without leave to amend.</p> <p style="text-align: center;"><b>2. Motion to Strike Portions of Complaint</b></p> <p>The motion of defendants Career Networks Institute, Inc., dba CNI College, and Anne Gonzales to strike portions of the second amended complaint of plaintiff Gabriela Rodriguez is MOOT.</p> |
| <b>6</b> | <p><b>Pacific Rim Cultural Foundation vs. Ainsworth</b></p> <p><b>2024-01400894</b></p> | <p><b>1. Demurrer to First Amended Complaint by Defendant Andrew Boyd-Jones (ROA 85)</b></p> <p>The Demurrer of Defendant Andrew Boyd-Jones is SUSTAINED.</p> <p>Plaintiff’s request for judicial notice of filings in the Orange County and Los Angeles Superior Courts (ROA 102) is granted.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

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|  | <p>Defendant contends the complaint is barred by the statute of limitations.</p> <p>Plaintiff's claims arise from a 1998 lawsuit to which Plaintiff was not a party. The parties included Nicholas Rockefeller (Plaintiff's assignor, now apparently deceased) and parties including the Lehmer Parties (the underlying Plaintiff, a non-party to this lawsuit), and the Trenwith Parties (some of whom are Defendants in this lawsuit).</p> <p>Plaintiff alleges it eventually obtained, via assignment, a right of indemnification against Defendants against loss and damage "arising out of any claim by the Rockefeller Defendants by reason [of] th[e] assignment of claims" in the 1999 settlement of the 1998 lawsuit.</p> <p>In 2000, Rockefeller filed a cross-complaint against the other parties to the 1998 lawsuit and obtained a 2003 settlement with Lehmer Parties, which included a promise to provide a \$5 million promissory note and assignment of Lehmer Parties' indemnity rights under their 1999 settlement with the Trenwith Parties. Rockefeller obtained a 2007 judgment enforcing this settlement, but Lehmer Parties apparently failed to comply with the judgment. After years of further litigation against Lehmer Parties, Rockefeller obtained a subsequent judgment, including interest, against the Lehmer Parties for approximately \$12.5 million arising from the 2003 settlement.</p> <p>Plaintiff now seeks to enforce the indemnity agreement between the Trenwith and Lehmer Parties which was set out in the 1999 settlement agreement and eventually assigned to Plaintiff.</p> <p>Moving Defendant contends Plaintiff's claims are barred by the four year statute of limitations for breach of written contract under code of Civil Procedure section 337.</p> <p>Construing the underlying indemnity agreement as indemnity against liability, Defendant argues that Plaintiff's claim first accrued at the latest in May 2007, when judgment was entered against the Lehmer Parties on the 2003 settlement agreement.</p> <p>In the alternative, construing the underlying indemnity agreement as an indemnity agreement against loss, Defendant contends that such a claim has not yet accrued because it does not arise until payment has been made. Plaintiff does not allege</p> |
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|  | <p>that any payment has been made under the 2024 judgment of \$12.5 million.</p> <p>Plaintiff apparently concedes the agreement was for indemnity against liability, arguing the claim accrued when liability was established via the 4/17/24 judgment against Lehmer. Plaintiff cites <i>Alberts v. American Cas. Co. of Reading, Pa.</i> (1948) 88 Cal.App.2d 891, 899 (cleaned up), which holds:</p> <p>“The same instrument may indemnify against actual loss and against liability. Liability is established upon the rendition of a judgment against the indemnitee with respect to the thing indemnified although the judgment remains unpaid. The form which the litigation takes is of no importance so long as the liability of the indemnitee is established. If the contract binds the indemnitor to pay money and the payment of the money will prevent harm or injury to the indemnitee it is a contract of indemnity against a liability.”</p> <p>The problem with Plaintiff’s argument is that the 2024 judgment was not the first judgment holding the Lehmer parties liable for claims by Rockefeller. It was only the final result of decades of litigation to enforce the 2003 settlement which included a prior 2007 judgment arising from the same liability. Plaintiff makes no attempts to distinguish between the 2007 judgment and the 2024 judgment for purposes of the statute of limitations.</p> <p>Even construing the FAC in the light most favorable to Plaintiff, the May 2007 judgment “established” the liability of the indemnitee, Lehmer. Therefore, the May 2007 judgment triggered the applicable four-year statute of limitations despite the fact that Rockefeller went on to obtain a later judgment as to the same subject with added interest.</p> <p>Plaintiff has not explained how the complaint could be further amended to state a timely claim under Code of Civil Procedure section 337. Therefore, the demurrer is sustained without leave to amend.</p> |
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|          |                                                                     | <p><b>2. Demurrer to First Amended Complaint by Defendants BDO Seidman, LLP; BDO USA, P.C.; BDO Capital Advisors, LLC; and Trenwith Group, LLC (ROA 91)</b></p> <p>The Demurrer of Defendants BDO Seidman, LLP; BDO USA, P.C.; BDO Capital Advisors, LLC; and Trenwith Group, LLC is SUSTAINED.</p> <p>Plaintiff’s request for judicial notice of filings in the Orange County and Los Angeles Superior courts (ROA 102) is granted.</p> <p>Moving Defendant asserts the same statute of limitations argument raised by Defendant Andrew Boyd-Jones and addressed above. The demurrer is sustained without leave to amend for the same reasons.</p> <p><b>3. Demurrer to First Amended Complaint by Defendant Ron E. Ainsworth (ROA 79)</b></p> <p>The Demurrer of Defendant Ron E. Ainsworth is SUSTAINED.</p> <p>Plaintiff’s request for judicial notice of filings in the Orange County and Los Angeles Superior courts (ROA 102) is granted.</p> <p>Moving Defendant asserts the same statute of limitations argument raised by Defendant Andrew Boyd-Jones and addressed above. The demurrer is sustained without leave to amend for the same reasons.</p> |
| <b>7</b> | <p><b>LCS Capital, LLC vs. Sell</b></p> <p><b>2023-01345115</b></p> | <p><b>1. Motion to Enforce Settlement</b></p> <p>Plaintiff LCS Capital, LLC’s unopposed Motion to Enforce the Settlement is GRANTED. (Code Civ. Proc. § 664.6)</p> <p>“A court ruling on a motion under CCP § 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on a motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. If the court determines</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |